

(f) erect, operate, maintain or repair any telegraph and telephone lines in connection with the working of the railway;(g) erect, operate, maintain or repair any electric traction equipment, power supply and distribution installation in connection with the working of the railway; and

(h) do all other acts necessary for making, maintaining, altering or repairing and using the railway.

12. Power to alter the position of pipe, electric supply line, drain or sewer, etc. - (1) A railway administration may, for the purpose of exercising the powers conferred on it by this Act, alter the position of any pipe for the supply of gas, water, oil or compressed air, or the position of any electric supply line, drain or sewer.

Provided that before altering the position of any such pipe, electric supply line, drain or sewer, the railway administration shall give a notice indicating the time at which the work of such alteration shall commence, to the local authority or other person having control over the pipe, electric supply line, drain or sewer.

(2) The railway administration shall execute the work referred to in sub-section (1) to the reasonable satisfaction of the local authority or the person receiving the notice under the provision to the sub-section (1).

13. Protection for Government Property. - Nothing in section 11 and 12 shall authorise -

(a) a railway administration of the government railway to do anything on or to any works, lands or buildings vested in, or in the possession of, a State Government without the consent of that Government; and

(b) a railway administration of a non-Government railway to do anything on or to any works, lands or buildings vested in, or in the possession of, the Central Government or a State Government, without the consent of the Government concerned.

14. Temporary entry upon land to remove obstruction, to repair or to prevent accident - (1) Where in the opinion of a Railway administration - (a) there is imminent danger that any tree, post or structure may fall on the railway so as to obstruct the movement of the rolling stock; or

(b) any tree, post, structure or light obstructs the view of any signal provided for movement of rolling stock; or

(c) any tree, post or structure obstructs any telephone or telegraph line maintained on it,

it may take such steps as may be necessary to avert such danger or remove such obstruction and submit a report thereof to the Central Government in such manner and within such time as may be prescribed.

(2) Where in the opinion of a railway administration -

(a) a slip or accident has occurred; or

(b) there is apprehension of any slip or accident to any cutting embankment or other work on a railway,

it may enter upon any lands adjoining the railway and do all such works as may be necessary for the purpose of repairing or preventing such slip or accident and submit a report thereof to the Central Government in such manner and within such time as may be prescribed.

(3) The Central Government may, after considering the report under sub-section (1) or sub-section (2), in the interest of public safety, by order, direct the railway administration that further action under sub-section (1) or Sub-section(2) shall be stopped or the same shall be subject to such condition as may be specified in that order.

15. Payment of amount for damage or loss - (1) No suit shall lie against a railway administration to recover any amount for any damage or loss caused in the exercise of the powers conferred by any of the foreign provisions of this chapter.

(2) A railway administration shall pay or tender payment for any damage or loss caused in the exercise of the powers conferred by any of the foregoing provisions of this chapter, and in case of a dispute as to the sufficiency of any amount so paid or tender or as to the persons entitled to receive the amount, it shall immediately refer the dispute for the decision of the District judge of the district and his decision thereon shall be final;

Provide that where the railway administration fails to make a reference within sixty days from the date of commencement of the dispute, the District Judge may, on an application made to him by the person concerned, direct the railway administration to refer the dispute for his decision.

(3) The reference under sub-section (2) shall be treated as an appeal under Sec.96 of the Code of Civil Procedure, 1908 (5 of 1908), and shall be disposed of accordingly.

(4) Where any amount has been paid as required by sub-section (2), the railway administration shall, notwithstanding anything in any other law for the